

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MANUEL ISACC SUAREZ,

Petitioner

VS.

MARIA RADWICK,

Respondent

) Case Number: FPT-24-378517

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: MINOR CHILD'S PASSPORT PROTOCOL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Manuel Isacc Suarez (Father) and Respondent Maria Radwick (Mother) have one minor child together, Oshan (DOB: 8/28/2017, age 8).
- 2) On for hearing is Father's Request filed 3/11/2026 seeking an order requiring a party who travels internationally without the child to give Oshan's American and Bulgarian passports to the other party during the period of travel. Father states he is concerned he will not be able to travel internationally with Oshan in the event an emergency occurs while Mother is abroad. The Court notes that Father previously made this same request on 7/14/2025 and that after several continuances, Father did not appear at the hearing, and the matter was dismissed without prejudice.
- 3) Mother has filed a response asking the Court to deny Father's request. She states the current Court order filed 6/2/2025 sets forth a protocol for the exchange of passports, requiring passports to be exchanged 10 days prior to any international travel with the child. Mother also notes that Father's concern of an emergency could happen at any time, regardless of whether the other

parent is traveling internationally. She notes that she most recently traveled for a week without the child and that it is difficult to see what emergency would require Father to travel with Oshan internationally while Mother is away. Third, Mother notes that in the unlikely event of an emergency, Father would need to obtain a Court order to travel internationally with Oshan in the event of an emergency anyway, in which case the exchange of the passport can be arranged by Mother or another individual. Fourth, Mother states the child's Bulgarian passport is only necessary for travel to Bulgaria which Father is not allowed to do under the 6/2/2025 order. Fifth, Mother is concerned that Father will lose the passports if the parties exchanged them every time one parent travels internationally. She notes that she recently gave Father Oshan's medical card after he insisted that he keep it, even though she is the one who makes all of Oshan's appointments. Father then called to tell Mother that he no longer has Oshan's medical card or social security card or Oshan's brother's passport. Mother states there are no new circumstances to change the current, 6/2/2025 passport-exchange order. She believes Father's request is part of a pattern of harassment and interference with her personal life and ability to travel and a way for him to force her to interact with him every time she travels.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) The Court finds good cause to deny Father's request for the exchange of passports whenever one parent travels internationally without the child. The 6/2/2025 order sets forth a protocol for the exchange of passports, which the parties are ordered to continue to follow.
- 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KERI CICOLANI,

Petitioner

VS.

DANIEL LÁZARO-CUADRADO,

Respondent

) Case Number: FPT-25-378759

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Keri Cicolani (Mother) and Respondent Daniel Lazaro-Cuadrado (Father) have one minor child together, Pelayo “Ayo” (DOB: 10/23/2015, age 10). On 12/31/2025, the parties filed a Stipulation and Order regarding Mother’s Domestic Violence Restraining Order (DVRO) request and custody and parenting time.
- 2) At a 3/10/2026 hearing, the Court ordered that the parties shall have temporary joint legal and joint physical custody of Ayo, with Father to have parenting time with Ayo commencing 4/13/2026 as follows:
 - a. Alternating weekends from Friday after-school pick up to Monday morning school drop off. Pick-ups and drop-offs shall be at 12pm if school is not in session.
 - b. Wednesday after-school pick up to Thursday morning school drop off. Pick-ups and drop-offs shall be at 12pm if school is not in session.
 - c. All non-school related custody exchanges shall occur at Mother’s home, curbside.

- 1 d. The parties shall have the following holiday schedule: (1) Father shall have the whole
2 week of President's Week Recess in even-numbered years. Mother shall have the whole
3 week of President's Week Recess in odd-numbered years; and (2) Mother shall have the
4 whole week of Spring Break in even-numbered years. Father shall have the whole week
5 of Spring Break in odd-numbered years.
- 6 e. Father's request to take Ayo to Spain to visit relatives for three weeks this summer is
7 denied without prejudice. However, the parties may agree in writing to permit
8 international travel with Ayo. Should there be such travel, the traveling party shall
9 provide the other party with travel information including flight details, basic itinerary,
10 locations Ayo will be staying, and contact information.
- 11 f. Ayo shall continue attending Children's Day School in San Francisco for the 2026–2027
12 school year. The parties shall share the tuition equally and shall fully and timely
13 cooperate to sign any forms required for Ayo to attend the school for this school year.
14 The parties shall also fully and timely cooperate to complete any steps and provide any
15 information necessary for Mother to apply for financial aid for Ayo.
- 16 g. Mother's unopposed request seeking exclusive use and possession of the apartment
17 located at 159 Dolores St. #4, San Francisco, CA 94103 is granted.
- 18 h. Effective 4/13/2026, the parties shall share equally the following costs: reasonable
19 uninsured healthcare costs (including dental and therapy costs), extracurricular activities
20 (including "enrichment activities designed for children with ADHD") in which the child
21 is currently participating and mutually agreed extracurricular activities going forward,
22 testing, and school supplies. (See Findings and Order After Hearing filed 4/13/2026.)
- 23 i. A review hearing is set for 5/28/2026 at 9am in Department 404. Both parties shall file
24 and serve update declarations at least 10 days before the hearing.
- 25 j. Father's request that the parties participate in coparenting counseling and split the costs
26 of counseling equally is continued to the review hearing date set forth above.
- 27 3) On 5/14/2026, Father filed a Supplemental Declaration requesting the following: (1) joint legal
28 and joint physical custody; (2) 50/50 custodial timeshare schedule, with each parent spending
29 alternating weeks with Ayo except on Christmas, New Years, vacation on Summer, Winter, and

1 Spring, and various holidays; (3) Court order allowing Ayo and Father to visit their relatives in
2 Spain during the summer from June 20 to July 11, 2026; (4) Parallel parenting arrangement
3 instead of a co-parenting arrangement; (5) Mother to pay for the private school tuition for
4 Children's Day School; (6) Admonish Mother that continued harassment of Father and disturbing
5 his peace during his custodial timeshare will result in an order requiring all communication to
6 occur exclusively through a Court-approved platform. Father states the current custody and
7 visitation schedule has caused Ayo anxiety and distress, and Mother persistently deprived Ayo of
8 time with him by repeatedly calling and texting Father during his parenting time. Father identified
9 several incidents that occurred before the Court issued its order on 4/13/2026. Father also states
10 Mother's agreement to allow Father to travel to Spain with Ayo for three weeks is overwhelming
11 proof that a 50/50/ timeshare is appropriate. Father states cooperative communication with
12 Mother is unworkable, citing incidents of Mother's counsel withdrawing from the case due to
13 breakdown in communication and Mother filing a police report after the parties had a scheduling
14 disagreement.

15 4) On 5/14/2026, Father filed an Income & Expense Declaration.

16 5) On 5/18/2026, Mother filed an Update Declaration, requesting that (1) the Court maintain the
17 custody and visitation orders; (2) the Court order co-parent counseling; (3) Mother agrees to use
18 Our Family Wizard or other platforms to communicate with Father; (4) the Court maintain its
19 order on education and that Ayo be allowed to stay at Children's Day School for the foreseeable
20 future. Mother disagrees with Father's request for a 50/50 timeshare and parallel parenting,
21 stating Father has repeatedly failed to return Ayo on time and has exposed Ayo to custody
22 conflicts by bringing a police officer to Mother's home. Mother states Father refuses to cooperate
23 on coparenting scheduling; Father also does not have a permanent address, and he refuses to tell
24 Mother Ayo's whereabouts. Mother further states Father has told Ayo repeatedly that Mother is
25 "a liar" and "mean" during his parenting time, which has caused great emotional harm to Ayo.
26 Stemming from this concern, Mother states that she agreed to let Ayo travel to Spain with Father
27 for three weeks but requests that the Court order Father to return Ayo at the end of their trip.
28 Mother also states Father filed an incomplete Income & Expense Declaration.

1 **B. Findings and Order**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court finds it is in Ayo's best interest to maintain the current custody and parenting time
7 order set forth in the Findings and Order After Hearing from the 3/10/2026 hearing, filed
8 4/13/2026, with a modification that pursuant to the agreement between the parties, Father shall be
9 permitted to take Ayo to Spain for three weeks during the summer. Father shall, forthwith,
10 provide Mother with travel information including flight details, basic itinerary, locations Ayo will
11 be staying, and contact information for the duration of the trip. Father shall return Ayo to
12 Mother's care at the end of the trip.
- 13 3) The Court finds that the parties' disputes regarding custody and parenting time are causing harm
14 to Ayo. In addition, Mother states in her update declaration that she agrees with Father's request
15 for the parties to participate in coparenting counseling. The Court therefore orders the parties to
16 participate in coparenting counseling for at least 10 sessions and shall split the costs of
17 coparenting counseling equally. (Fam. Code, §§ 3011, 3190.) On or before 6/15/2026, Father
18 shall provide to Mother the names and contact information for 3 proposals for coparenting
19 counselors and Mother shall select 1 of the 3 individuals on or before 6/22/2026. If the parties are
20 unable to agree to the selection of a coparenting counselor, they may submit to the Court, on or
21 before 6/29/2026, the names of 2 coparenting counselors and a brief explanation of their reasons
22 for their choices, for the Court to select the coparenting counselor.
- 23 4) The parties shall not interfere with each other's parenting time by calling or texting the other
24 party excessively during the other party's parenting time.
- 25 5) The parties shall not speak negatively about each other to or within earshot of Ayo.
- 26 6) The parties shall not discuss the family court case with Ayo, except to inform him of parenting
27 times.
- 28 7) Effective 6/1/2026, the parties shall communicate solely via Our Family Wizard, and only about
29 Ayo. All communication shall be peaceful and respectful.

- 1 8) Father's request for the Court to reconsider its prior order for Ayo to attend Children's Day
2 School for the 2026-2027 school year and for the parties to share the tuition equally is denied.
3 Father has presented no new facts or evidence that could not have been presented before or at the
4 3/10/2026 hearing. Moreover, Father's Income and Expense Declaration filed on 5/14/2026
5 shows he has \$500,000 in easily saleable investments which can be used to pay private school
6 tuition for the 2026-2027 school year.
- 7 9) If either party has a new request relating to custody and parenting time or any financial matters,
8 they may file and serve a new request for order with the Court.
- 9 10) All other orders not in conflict with these orders shall remain in full force and effect.
- 10 11) Mother's attorney shall prepare the Findings and Order After Hearing.
- 11 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHN HOFMEYER,

Petitioner

VS.

GABRIELA HOFMEYER,

Respondent

) Case Number: FDI-18-790640

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ESTABLISH DATE OF SEPARATION AS AUGUST 13, 2018; REQUEST
FOR ORDER TEMPORARY STAY OF PROPERTY SALE/SORT-SALE ACTIVITY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Petitioner's Request for Order Filed 3/2/2026

- 1) On 3/2/2026, Petitioner John Hofmeyer filed a Request for Order asking the Court for a temporary stay of enforcement of the provision within the Stipulation and Order filed 1/9/2024 concerning a short sale of the condominium located at 245 5th Street, Unit 201, San Francisco, California.
- 2) On 4/15/2026, Respondent Gabriela Hofmeyer filed a Responsive Declaration asking the Court to deny Petitioner's requested relief.
- 3) On the Court's own motion, the hearing on Petitioner's 3/2/2026 Request for Order is hereby continued to **6/23/2026 at 9:00 AM in Dept. 404** to join the hearing already set on that date on a Petitioner's related Request for Order filed 5/4/2026.

1 **B. Petitioner's Request for Order Filed 4/6/2026**

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- 3 1) On 4/6/2026, Petitioner filed a Request for Order asking the Court to make a finding that the
- 4 parties' date of separation is 8/13/2018.
- 5 2) On 5/14/2026, Respondent filed a Responsive Declaration which states: "There is no actual
- 6 dispute regarding Petitioner's proposed date of separation. However, the issue of date of
- 7 separation is ultimately a trial issue and is therefore not appropriate for determination through the
- 8 present hearing process. The parties could have resolved The parties could have resolved this
- 9 matter informally and without court intervention. Because there is no contention requiring
- 10 immediate determination, judicial resources need not be expended on a separate hearing
- 11 regarding the issue. Accordingly, Respondent respectfully requests that the Court make a finding
- 12 adopting Petitioner's date of separation and vacate the presently scheduled hearing on this issue."
- 13 3) The Court finds that the parties' date of separation is 8/13/2018.
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15 **C. Preparation of Order**

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- 17 1) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ROSA RANGEL RODRIGUEZ,

Petitioner

VS.

JORGE ESTRADA RANGEL,

Respondent

) Case Number: FDI-19-791481

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)- BACK ON CALENDAR AFTER ALERT FROM FAMILY COURT SERVICES
THAT ISSUE OF EXCHANGES NEEDS TO BE ADDRESSED

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9am on 5/28/2026 in Department 404. The parties shall be prepared to inform the Court of their respective wishes for the custody exchange location and the reasons they are requesting their location.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Rosa Rangel Rodriguez (Mother) and Jorge Estrada Rangel (Father) have one minor child together, Monserrath (DOB 8/31/2015, age 10). Pursuant to a Judgment entered 5/17/2021, Mother has sole legal and physical custody of Monserrath with Father having parenting time every Wednesday at 4:30pm to Thursday at 8am and every Saturday at 1pm to Sunday at 2pm

- 2) On 2/18/2026, Father filed a request for joint legal and physical custody, with parenting time for him on the first, third, and fifth weekends of each month, from school pick up on Friday to Sunday at 6pm, with drop off at the In-n-Out located at 720 Admiral Callaghan in Vallejo.
- 3) On 3/10/2026, Mother filed a response in which she seeks sole legal and physical custody of Monserrath with reasonable visitation to Father, “but minor child may refuse visitation.”
- 4) The parties attended mediation and reached an agreement for Father to have “every other Sunday from 11am to 5pm,” with exchanges to occur at the Target located at 2059 Cadenasso Drive in Fairfield. The parties agreed that Father will have phone calls with Monserrath every day at 7pm for up to 30 minutes and that Mother will inform Father of any games the child is playing in, and that Father may attend the games. The parties agreed they will communicate via text message and phone calls and that they may adjust the parenting time schedule to meet the child’s needs. The parties further agreed that Mother will travel with the child from 7/7/2026 to 7/23/2026 during which there will be no visits for Father. The parties agreed to participate in further mediation on 8/18/2026 at 1:30pm and to continue the 5/28/2026 hearing to 9/8/2026.
- 5) After the parties reached the above agreement, Family Court Services referred the parties back to court on 5/28/2026 after a dispute arose regarding the custody exchange location.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) **The parties are ordered to appear in person or via Zoom video at 9am on 5/28/2026 in Department 404. The parties shall be prepared to inform the Court of their respective wishes for the custody exchange location and the reasons they are requesting their location.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JASON TODD WONG,

Petitioner

VS.

JOGI M QUIMBO,

Respondent

) Case Number: FDI-22-797179

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME), ORDER SHORTENING TIME

TENTATIVE RULING

The parties are ordered to appear in person or by Zoom video at 9am on 5/28/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Jason Todd Wong (Father) and Jogi M Quimbo (Mother) have two minor children together, Quinci (DOB 7/8/2010, age 15) and Quirena (DOB 6/17/2012, age 13). The Court ordered in a Findings and Order After Hearing filed 1/11/2023 that the parties shall have joint legal and physical custody of the children, with a 2-2-5-5 and shared holiday parenting time schedule.
- 2) On 5/1/2026, Father filed an ex parte request seeking sole legal and sole physical custody of both children after Quirena was hospitalized after a suicide attempt and Mother had her released against medical advice, and Mother's home was foreclosed on and sold at auction on 4/29/2026. Father states the parties have not been following the 2-2-5-5 parenting time schedule as to either child because Quinci no longer wants to live with Mother and Quirena has been staying mostly at

1 Mother's home to take care of the family dog that lives in Mother's home, and with whom
2 Quirena is deeply bonded. Father states that Mother has "largely neglected to care for our
3 daughters leaving the majority of parenting duties to me." He expresses "grave concerns" about
4 Mother's judgment as it relates to legal custody and provides numerous examples that reflect his
5 concerns. The Court granted Father's ex parte request in part, awarding him temporary sole legal
6 custody regarding Quirena's health and temporary sole physical custody of Quirena pending a
7 hearing on his request for sole legal and physical custody of both children. The Court also
8 ordered that the family dog shall move with Quirena to Father's home. The Court ordered the
9 parties to attend orientation with Family Court Services on 5/4/2026 or 5/11/2026 and attend
10 mediation on 5/12/2026 at 9am.

- 11 3) Father has filed a declaration of diligence in attempting service of the ex parte request on Mother
12 and a declaration from counsel that shows that Mother received, via email from counsel, the ex
13 parte request, the Court's ex parte order, and a blank FL 320 (Responsive Declaration). The
14 record does not show that Mother has received a copy of the Court's tentative ruling instruction
15 sheet. Mother has not filed a responsive declaration.

16 **B. Findings and Order**

- 17 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
18 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
19 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
20 children is the United States.
- 21 2) **The parties are ordered to appear in person or by Zoom video at 9am on 5/28/2026 in**
22 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID WONG,

Petitioner

VS.

XIAOYAN MA,

Respondent

) Case Number: FDI-23-797598

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner David Wong (Father) and Respondent Xiaoyan Ma (Mother). The parties married on 3/3/2010. The parties disagree regarding their date of separation, but they agree their marriage lasted at least 12 years. The parties have one minor child, Jordan (DOB: 8/5/2011, age 14). Father is represented by attorney Frank Kim. Mother is self-represented.
- 2) On 11/8/2024, the Court issued a 2-Year Restraining Order After Hearing protecting Father against Mother. The restraining order is set to expire on 11/8/2026.
- 3) On 12/8/2025, following a trial before Judge Wiley which occurred on 4/9/2025, 4/17/2025, 6/11/2025, 7/8/2025, and 7/11/2025, Judge Wiley issued a Final Statement of Decision. Judge Wiley found that in February 2023, after the Petition for Dissolution and been filed and served, Mother transferred various life insurance policies to her adult daughter Shiyi Yang in violation of the ATROs. The Court found that these unilateral transfers are void. The Statement of Decision provides in pertinent part:

- a. Mother shall pay Father \$74,417.32, which constitutes half of the community property interest in the various identified life insurance policies or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies within 60 days of the date of the Final Statement of Decision.
- b. Following the equalization payment, the Court awards the life insurance policies insuring Father and Jordan to Father. Those policies, and the monthly premiums, will be transferred to Father as the owner of those policies. Those policy numbers are #8573 (insured party is Father), #8890 (insured party is Father), and #7087 (insured party is Jordan).
- c. Mother shall pay Father \$7,500 for prevailing party attorney's fees incurred pursuant to Family Code section 6344 and \$608 in costs within 45 days of the Final Statement of Decision.
- d. Father shall pay Mother \$20,000 in Family Code section 2030 attorney's fees within 45 days of the date of the Final Statement of Decision.

- 4) On 12/12/2025, Mother filed a Notice of Appeal of the 12/8/2025 Statement of Decision.
- 5) On 12/15/2025, a Court of Appeal Clerk filed a Notice of Filing of Notice of Appeal.
- 6) On 12/17/2025, Mother filed an Appellant's Notice Designating Record on Appeal.
- 7) On 12/17/2025, Mother filed a Request for Order. Mother states she does not have sufficient funds, assets, or access to credit to make the payments ordered within the Statement of Decision and she has no present ability to obtain such funds. Mother also states, "Although one item is currently titled in my name, I am presently unable to comply with the ownership or transfer provisions of the Final Statement of Decision because I lack unilateral legal authority and the practical ability to complete any transfer while the appeal is pending." Mother states, "Without a stay of enforcement, I face the risk of enforcement actions or sanctions despite my present inability to comply and the pendency of the appeal." Mother asks the Court to:
 - a. Stay enforcement of the 12/8/2025 Final Statement of Decision pending appeal;
 - b. Determine Mother's inability (not refusal) to comply;
 - c. Clarify the stay covers insurance equalization, attorney's fees, and ownership / transfer obligations; and

- d. Bar enforcement or sanctions as to those provisions during the appeal.
- 8) Within the Findings and Order After Hearing filed 4/17/2026, the Court adjudicated Mother's 12/17/2025 Request for Order and made the following findings and orders:
- a. The Court finds that the provision requiring Mother to pay Father \$74,417.32 in cash "or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies" is a money judgment under Code of Civil Procedure section 680.270 and that Code of Civil Procedure section 917.1(a) applies to Mother's request for a stay of enforcement of this provision.
 - b. Mother's request that the Court make a finding that Mother has an inability to comply with the identified portions of the Judgment is denied. The Court does not find that Mother has an inability to comply with the identified portions of the Judgment.
 - c. No later than Friday, 4/24/2026 at 5:00 PM Mother shall provide to the Department 404 Department Clerk a cashier's check in the amount of \$62,525.32 for an undertaking.
 - d. The Court will set a review hearing of Thursday, 5/28/2026 at 9:00 AM in Dept. 404 to review Mother's compliance with this order and to determine whether to grant Mother's request for a stay.
- 9) On 4/24/2026, Mother filed a Declaration stating that she is unable to comply with the Court's order requiring an undertaking because she lacks access to sufficient liquid funds.
- 10) On 5/12/2026, the Court denied an ex parte Request for Order filed by Mother that same day requesting that the Court reduce or permit partial and or installments on the undertaking pending appeal.
- 11) On 5/13/2026, Mother filed a Declaration asking the Court to "consider preservation of the existing status and structure of the life insurance policies pending appellate review and the practical effect that transfer, surrender, withdrawal, depletion, or other material alteration of the policies may have on meaningful appellate review before those appellate issues are resolved."
- 12) On 5/18/2026, Father filed a Declaration arguing that a stay is not justified in this matter and that Mother has no legal ground for winning her appeal. Father asks the Court to enforce Judge Wiley's Final Statement of Decision and transfer the following life insurance policies into his name: Transamerica life insurance policies #8573 (with a cash surrender value of \$83,074.77), #8890

(with a cash surrender value of \$65,792.84), and #7087 (with a cash surrender value of \$6,381.64). It appears Father is not asking for the full cash surrender value of these policies to be transferred to Father, but rather \$30,000 from policy #8573, \$30,000 from policy #8890, and \$2,525.32 from policy #7087, for total cash value of \$62,525.32 which is the net amount Mother owes Father.

13) On 5/19/2026, Mother filed a Declaration. Mother states that the insurance policies at issue were originally funded using money connected to property sale proceeds from China involving her adult daughter Shiyi Yang. Mother states that because the policies were funded using money connected to Shiyi Yang, Shiyi Yang's interests are implicated in Father's requests that policies be transferred to him. Mother states that Shiyi Yang is the owner of policies #8890 and #7087. Mother states the policies should not be accessed, withdrawn against, surrendered, depleted, transferred, or otherwise materially altered before completion of the appeal. Mother states, "Preservation of the existing condition and structure of the policies is necessary to maintain the status quo while the appellate issues concerning ownership, transfer, valuation, equalization, and third-party interests remain unresolved."

14) On 5/21/2026, Father filed a Declaration stating that Judge Wiley already determined that the home in China whose proceeds were used to purchase the life insurance policies belonged to Mother and not her daughter Shiyi Yang. Judge Wiley also determined that transfer of ownership of the life insurance policies to Shiyi Yang only occurred after Mother filed for Dissolution of Marriage, and that transfer is void because it is in violation of the ATROs. Father reiterates his request that the identified policies be transferred to him.

15) On 5/22/2026, Mother filed a Reply Declaration reiterating her request that the Court deny Father's requests, preserve the disputed policies, and maintain the status quo pending appellate review.

B. Findings and Order

1) On the Court's own motion, the Court hereby joins Shiyi Yang as a party to this proceeding under California Rules of Court, rule 5.24(e)(2). The Court will issue a Summons (Joinder), which will be mailed to both parties. No later than 6/15/2026, Mother must: (a) have Ms. Yang served with a copy of the Summons as well as a copy of the Findings and Order After Hearing for the

1 5/28/2026 hearing date using a service method set forth in California Rules of Court, rule 5.68
2 and (b) file a Proof of Service of Summons (POS-010) showing compliance with this order and
3 serve a copy of the POS-010 on Father's attorney.

4 2) Ms. Yang is precluded from transferring ownership of or making any changes to TransAmerica
5 life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is also precluded from
6 borrowing against, withdrawing, or transferring any of the cash surrender values of these
7 plans. In other words, TransAmerica life insurance policies ending in #8573, #8890, and #7087
8 are hereby frozen.

9 3) As soon as possible, Father shall have a copy of the Findings and Order After Hearing for the
10 5/28/2026 hearing date served on the appropriate TransAmerica representative to inform
11 TransAmerica of this order and he shall also file and serve a Proof of Service evidencing service
12 of this order.

13 4) The Court will set a hearing on **Thursday, 7/9/2026 at 9:00 AM in Dept. 404** to review the
14 parties' compliance with the above orders. Assuming Mother has complied, the Court will
15 determine whether to grant Mother's request for a stay.

16 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RACHEL HIATT,

Petitioner

VS.

ROBERT SPEIGHT,

Respondent

) Case Number: FDI-24-799715

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ENFORCEMENT OF STIPULATED JUDGMENT (8/15/25, SECTION 3.2)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Rachel Hiatt (Wife) and Respondent Robert Speight (Husband) married on 5/8/2014 and separated on 4/26/2024, for a marriage of 9 years and 11 months. The parties have no minor children. Both parties are self-represented.

2) On 10/29/2025, a Stipulated Judgment was entered in this matter resolving all issues, which provides in relevant part:

- a. **Section 2.2:** “To equalize the division of community property assets and obligations as set forth in this Judgment, Wife is Ordered to pay Husband the sum of One Hundred Five Thousand Dollars (\$105,000) via QDRO from her CalPERS 457(b) retirement account. This payment is found to by the Court to be a tax-free interspousal transfer related to the cessation of marriage to effect a division of marital property under Internal Revenue Service 1041 and comparable provisions of state law.”

1 b. **Section 3.2.1:** “It is intended that the total equalization payment of One Hundred Five
2 Thousand Dollars (\$105,000) be distributed in cash directly to Husband pursuant to the
3 QDRO and shall be payable as a lump-sum monetary distribution from Wife’s CalPERS
4 457(b) account. This amount is a fixed obligation, not contingent upon market conditions,
5 plan valuation, or percentage interest. Husband shall receive the full \$105,000 free and
6 clear of any tax liability, penalty, or encumbrance, and Wife shall indemnify and hold
7 Husband harmless from any [and] all taxes, costs, and penalties associated with this
8 transfer, consistent with Internal Revenue Code Section 1041 and applicable state law.
9 Should any taxes, penalties, or other encumbrance reduce Husband’s initial net receipt,
10 Wife shall reimburse to Husband the exact amount of the reduction. Both parties will
11 work together to effectuate the intention of this agreement, which is for Husband to net
12 \$105,000.”

13 3) On 11/17/2025, a Qualified Domestic Relations Order was entered requiring the CalPERS 457
14 Plan to distribute \$105,000 to Husband as a “single lump-sum cash payment.”

15 4) Now on for hearing is Husband’s Request for Order filed 4/17/2026. Husband states that on
16 3/26/2026, he received a distribution from the CalPERS 457 plan of \$71,073.38. Husband states
17 that \$30,460.02 was withheld for federal taxes. Husband states he reached out to Wife multiple
18 times to request that she reimburse him the \$30,460.02 that was withheld. Wife first stated she
19 could liquidate \$10,000 within 7 to 10 days but then stated she could only afford to pay \$500 per
20 month towards this sum. Husband states that payment of \$500 per month would take over five
21 years to satisfy the obligation, excluding interest, and does not constitute reasonable compliance
22 with a court-ordered indemnification obligation. Husband attached a printout from the
23 Transparent California website which appears to show that Wife earned \$221,655 in income in
24 2024 as the Deputy Director for Planning of the San Francisco County Transportation Authority.
25 Husband asks the Court to:

- 26 a. Order Wife to pay Husband \$30,460.02 within 10 calendar days of the Court’s order;
27 b. Award Husband statutory interest on this amount at the rate of 10% per annum
28 commencing 3/26/2026;
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- 1 c. Award Husband \$1,200 in Family Code section 271 “reflecting the time and effort I have
2 expended as a result of Petitioner’s failure to comply with the judgment;”
- 3 d. Authorize enforcement remedies, including but not limited to earnings assignment and
4 other collection methods, and authorize Husband to proceed with enforcement without
5 further hearing if Wife fails to pay within the timeframe ordered by the Court.
- 6 5) Per the Proof of Electronic Service filed 4/13/2026, Husband’s Request for Order was emailed to
7 Wife on 4/11/2026.
- 8 6) The Court notes that, per the Findings and Orders filed 4/14/2025, the parties agreed to electronic
9 service.
- 10 7) Wife did not file a Responsive Declaration.

11 **B. Findings and Order**

- 12 1) There is no evidence in the record that Wife was served with a file-endorsed copy of Husband’s
13 4/17/2026 Request for Order, and therefore there is no evidence in the record that Wife has
14 received notice of the hearing date set for Husband’s 4/17/2026 Request for Order. The Court
15 also notes that Husband’s Proof of Service does not mention that Husband served Wife with a
16 blank Responsive Declaration (as required by California Rules of Court, rule 5.92(f)(2)(4)) or a
17 copy of the Tentative Ruling Instructions (as required by San Francisco Local Rules, rule
18 11.7(D)(3)(a)).
- 19 2) The hearing on Husband’s 4/17/2026 Request for Order is hereby continued to **Tuesday,**
20 **8/4/2026 at 9:00 AM in Dept. 404.**
- 21 3) By the deadlines set forth in the Code of Civil Procedure, Husband shall have the following
22 pleadings served on Wife:
- 23 a. Blank Responsive Declaration
- 24 b. Tentative Ruling Instructions
- 25 c. Findings and Order After Hearing for the 5/28/2026 hearing date (which will be mailed to
26 Husband)
- 27 4) At least 10 calendar days prior to the next hearing date, Wife shall file and serve a fully
28 completed Income and Expense Declaration.
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1 5) If the parties require further assistance, they may contact the ACCESS Center. Information for
2 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
3 [center](https://sf.courts.ca.gov/access-legal-self-help-center).

4 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SILVIA MICHELLE ALEMAN,

Petitioner

VS.

ANDREW REYES,

Respondent

) Case Number: FDI-25-801091

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR HEARING AND APPLICATION TO SET ASIDE
SUPPORT ORDER UNDER FAMILY CODE SECTION 3691

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Silvia Aleman (Wife) and Respondent Andrew Reyes (Husband). The parties married on 3/14/2009 and they agree their date of separation is 3/8/2025, for a marriage of 15 years and 11 months. The parties have no minor children. Both parties are self-represented.
- 2) On 3/26/2025, in related Case No. FDV-25-818257, the Court denied Husband's request for a Domestic Violence Restraining Order against Wife.
- 3) Issues Regarding Wife's Preliminary Declaration of Disclosure
 - a. At the prior 4/30/2026 hearing, among other orders made, the Court ordered Wife to serve on Husband all documents that are required to be included with a Preliminary Declaration of Disclosure and to file a Declaration Regarding Service (FL-141) no later than 5/8/2026. A hearing was set for 5/28/2026 to "review Wife's compliance with this order and consider awarding sanctions to Husband."

- 1 b. On 4/30/2026, Wife filed a Declaration Regarding Service of Declaration of Disclosure
2 stating that her Preliminary Declaration of Disclosure was emailed and mailed to
3 Husband on 4/30/2026.
- 4 c. On 5/13/2026, Husband filed a Declaration naming over 6 pages of “deficiencies” in
5 Wife’s Preliminary Declaration of Disclosure which will not be restated here.
- 6 d. On 5/18/2026, Wife filed a Declaration in Response to Andrew Reyes’ Declaration
7 Identifying Deficiencies in Petitioner’s Preliminary Declaration of Disclosure. Wife
8 states that Husband demands strict compliance with disclosure requirements while failing
9 to satisfy those same requirements himself. Wife states that Husband has failed to
10 respond to discovery and owes her \$11,079 in support arrearages plus Smith / Ostler
11 bonus support arrears.
- 12 e. On 5/20/2026, Husband filed a Declaration naming the following additional
13 “deficiencies” in Wife’s Preliminary Declaration of Disclosure:
- 14 i. Wife did not produce any tax returns and stated she would only provide IRS
15 Form 4868 for tax year 2025 “upon request from the court”
- 16 ii. Wife must produce a complete platform-generated Venmo statement from her
17 phone or laptop showing account holder, beginning balance, ending balance,
18 current balance, and most recent months transaction history
- 19 iii. Wife must produce documentation substantiating her claimed monthly housing
20 expense
- 21 iv. Wife must correct her Income and Expense Declaration to quantify the value of
22 the housing and related living expenses she receives through her pet-sitting
23 arrangements”

24 4. Husband’s Request to Set Aside Prior Temporary Spousal Support Orders

- 25 a. Also on for hearing is Husband’s Request for Hearing and Application to Set Aside
26 Support Order Under Family Code section 3691 filed 3/20/2026. Husband asks the Court
27 to set aside the Court’s prior orders (made on 9/2/2025 and 11/4/2025) which require
28 Husband to pay Wife \$3,693 per month in temporary guideline spousal support, plus
29 Smith / Ostler bonus support. Husband states that Wife failed to timely serve or failed to

1 serve completely documents related to Wife's spousal support request, including Wife's
2 initial FL-300 requesting spousal support and the declarations filed on 7/3/2025,
3 7/30/2025, 8/19/2025, and 10/20/2025. Husband states that Akbar Khan signed various
4 Proofs of Service stating that these documents were served on Husband, but Husband
5 obtained a signed affidavit by Akbar Khan stating that he did not sign the Proofs of
6 Service nor serve the documents in question. Husband also states that after the spousal
7 support proceedings had concluded, Wife admitted that following the parties' separation
8 she has stayed with friends or exchanged pet sitting services for temporary housing,
9 which means that Wife materially misrepresented her needs when she filed her spousal
10 support request. Husband states that, as a result, he paid \$20,000 in temporary spousal
11 support based on "materially overstated need." Husband asks the Court to set aside the
12 prior support orders or waive any claimed arrears. Husband also requests monetary
13 sanctions under Family Code section 271.

14 b. On 5/4/2026 and 5/6/2026, Wife filed identical Declarations stating she was never served
15 with Husband's request to set aside the temporary spousal support orders. Wife states she
16 only became aware of this motion by reviewing the Register of Actions. Wife asks the
17 Court to "note this failure for the record, require Respondent to immediately serve
18 Petitioner with the Section 3691 motion and all supporting documents, and require
19 Respondent to file a proof of service with the Court confirming such service before the
20 May 28, 2026 hearing proceeds."

21 c. On 5/20/2026, Husband filed a Declaration in Support of Motion to Set Aside Temporary
22 Support Order. Among other arguments and statements made, Husband states, "Petitioner
23 has not filed a Responsive Declaration (FL-320) directly addressing the allegations
24 concerning forged proofs of service or the alleged misrepresentations regarding her
25 housing expenses."

26 **B. Findings and Order**

- 27 1) No later than 6/15/2026, Wife shall serve on Husband a copy of her IRS Form 4868 for tax year
28 2025 as well as an updated Schedule of Assets and Debts which addresses the following issues:
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- a. Wife shall list the account name, account number, bank name, or branch of her checking and savings accounts and she shall also attach account statements for the past two months
 - b. Wife shall not leave any category of assets or debts blank. If she does not own or possess any asset or debt in the corresponding category, she must write “none.”
- 2) Husband’s request that the Court order Wife to correct all other named deficiencies is denied, albeit without prejudice to Husband’s ability to conduct discovery to address additional requests for information.
- 3) Husband’s request for sanctions related to Wife’s Preliminary Declaration of Disclosure is denied.
- 4) The Court does not see Proofs of Service on file demonstrating service of Husband’s Request for Hearing and Application to Set Aside Support Order Under Family Code section 3691 filed on 3/20/2026 or Husband’s Declaration in Support of Motion to Set Aside Temporary Support Order filed on 5/20/2026. The Court also does not see a Proof of Service on file demonstrating service of Wife’s Declaration filed on 5/4/2026. The hearing on Husband’s request to set aside the Court’s prior temporary support orders is hereby continued to **Tuesday, 8/11/2026 at 9:00 AM in Dept. 404.**
- 5) By the deadlines set forth in the Code of Civil Procedure, Husband shall have the pleadings he filed on 3/20/2026 and 5/20/2026 served on Wife.
- 6) By the deadlines set forth in the Code of Civil Procedure, Wife shall file a Responsive Declaration and have her Responsive Declaration and her declarations filed on 5/4/2026 and 5/6/2026 served on Husband.
- 7) By the deadlines set forth in the Code of Civil Procedure, Husband may file and serve a Reply Declaration (not to exceed 5 pages in length, not including exhibits).
- 8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON ROBINSON,

Petitioner

VS.

SILVIA ROBINSON,

Respondent

) Case Number: FDI-26-802639

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

TEMPORARY EMERGENCY ORDER, VISITATION (PARENTING TIME), CHILD SUPPORT,
ALTERNATIVE RELIEF: OST

TENTATIVE RULING

The parties are ordered to appear in person or by Zoom video at 11am on 5/28/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Allison Robinson (Allison) and Respondent Silvia Robinson (Silvia) have one minor child together, Isabella (DOB 12/24/2024, age 1).
- 2) On 3/27/2026, Silvia filed an ex parte request for temporary emergency custody and parenting time orders (joint legal and physical custody of Isabella) or an order setting the matter for hearing on shortened time. She states that on 2/21/2026, Allison abruptly informed her, without prior notice, that she was moving out of the family home in San Francisco and taking Isabella with her to an undisclosed residence in Walnut Creek. According to Silvia, Allison has since restricted Silvia's parenting time to brief daytime visits supervised by the nanny, "despite my long-standing role as an equal—and often primary—caregiver." Allison filed a response to the ex parte request

1 on 3/27/2026, opposing the request and setting forth in detail her concerns. She states, among
2 other things, that Silvia “struggled with ongoing alcohol abuse” during the marriage and that the
3 problem “worsened and affected her behavior, judgment, reliability, and ability to safely parent
4 Isabella.” She states she repeatedly raised her concerns with Silvia and encouraged her to seek
5 help, “but her drinking continued and often occurred secretly, including by hiding alcohol in our
6 home.” The Court denied the ex parte request pending a hearing on the matter and set it for
7 readiness on shortened time on 4/6/2026.

- 8 3) The parties attended mediation and were unable to reach an agreement. The disposition report
9 from the mediation shows that Allison is requesting sole legal and physical custody of Isabella
10 with supervised visits and Soberlink requirements for Silvia, and that Silvia is requesting joint
11 legal and physical custody and a progressive plan that includes unsupervised visits and reaching a
12 50/50 schedule within 6 months.
- 13 4) On 5/20/2026, Silvia filed a reply in which she reiterates her request for joint legal and physical
14 custody of Isabella and an order for Allison to disclose her current residential address, including
15 apartment number. She also sets forth a proposed step-up parenting schedule that begins with the
16 first and third Saturday at 9am to Sunday at 5pm, every Wednesday from 9am to Thursday at
17 6pm, and on Fridays from 9am to 5pm on the second and fourth weekends of each month.

18 **B. Findings and Order**

- 19 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
20 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
21 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
22 child is the United States.
- 23 2) **The parties are ordered to appear in person or by Zoom video at 11am on 5/28/2026 in**
24 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEIRA PAYTON,

Petitioner

VS.

MIGUEL AMADOR,

Respondent

) Case Number: FDV-21-816075

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or by Zoom video at 9am on 5/28/2026 in Department 404. At the 5/28/2026 hearing, the Court intends to set the matter for a long cause hearing and issue interim orders as necessary pending the long cause hearing.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Kiera Payton (Mother) and Miguel Amador (Father) have one minor child together, Levi (DOB 3/12/2021, age 5). The parties have had joint legal and physical custody of Levi since 2023, with a 2-2-3 parenting time schedule. (See Stipulation and Order filed 12/21/2023.) Mother lives in Sacramento and Father lives in Daly City; the parties have been conducting their custody exchanges on Mondays, Wednesdays, and Fridays in Pinole.
- 2) On 2/20/2026, Mother filed a request for a change in custody and parenting time due to the fact that Levi's age (entering Kindergarten) and the distance between the parties (Father in Daly City and Mother in Sacramento) will make it impossible for the parties to continue following the

1 current parenting time schedule. She requests that Levi be permitted to enroll in Kindergarten in
2 the Sacramento area where she resides, and that Father have parenting time on the second, fourth,
3 and fifth weekends of each month, with a week-on, week-off schedule during the summer
4 months. She states she has been the parent who has provided Levi with consistency and stability
5 over the years. She notes that Father lived in her home in Sacramento for approximately 5 months
6 in 2024 but subsequently lived in 5 different places in the Sacramento area for the next 6 months,
7 then moved back to his parents' house in Daly City in August 2025 without prior notice to her.
8 She states that Father has not been employed since 2022 and it is unclear how long he plans to
9 stay in Daly City. She states that in contrast, she has been consistently employed by the same
10 employer in Sacramento. She states that Father frequently relies on his parents and sister to watch
11 Levi during his custodial time and that he has not enrolled Levi in any activities. She states that
12 on one occasion, Father kept Levi for 3 days and refused to tell her where they were. She states
13 that Father has a history of being late for drop offs and refusing to take Levi to medical and dental
14 appointments during his parenting time.

15 3) On 5/7/2026, Father filed a declaration in which he states that Mother has refused to exchange
16 Levi to him "over 10 times" and that he has called law enforcement to enforce the prior order. He
17 states that Mother unilaterally enrolled him in school without notice to him and refuses to allow
18 Father to claim Levi as a dependent on his tax returns despite prior agreement of the parties. He
19 states that Mother has moved twice without providing notice to him and has refused to meet and
20 confer about modifications to the current order. Father states he is a caring and loving parent and
21 that Levi plays, learns and explores during his time with him. He states that Levi has extended
22 family in Daly City and is very close to them. He states he consistently appears for parenting time
23 exchanges and takes custody of Levi, including during an emergency in which Mother asked him
24 to get Levi in the middle of the night. Father submits a transcript of the parties' Talking Parents
25 communications regarding Levi's school. Father requests that the parties continue sharing legal
26 custody and that Levi be permitted to enroll in an elementary school in Daly City.

27 4) Mother filed a reply declaration on 5/19/2026. She requests a 3/4, 4/3 rotating schedule until
28 school starts this fall and that the Court order the parties to enroll Levi in John Adams Academy,
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1 a Kindergarten-through 12th grade charter school in Roseville. She responds to Father's
2 allegations.

3 **B. Findings and Order**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.
- 8 2) **The parties are ordered to appear in person or by Zoom video at 9am on 5/28/2026 in**
9 **Department 404. At the 5/28/2026 hearing, the Court intends to set the matter for a long**
10 **cause hearing and issue interim orders as necessary pending the long cause hearing.**
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